

2x600 मेगावाट कोयला आधारित संयंत्र
स्थापित करने हेतु रेल लाईन निर्माण
कार्य।

AREA:- 4.451 HA.

Encl:- 1. 1st stage approval letter
25/04/2016
2. 2nd stage approval letter
08/01/2017.



भारत सरकार
GOVERNMENT OF INDIA
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय
MINISTRY OF ENVIRONMENT, FORESTS & CLIMATE
CHANGE

Regional Office (WCZ)
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New Secretariat Building
Civil Lines, Nagpur - 440001
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F. No. FC-II/CH-19/2015-NGP/289

Dated: 25th April, 2016

To

The Principal Secretary (Forests),
Government of Chhattisgarh,
Raipur.

Sub: Diversion of 4.451 ha of revenue forest land in favour of M/s Korba West Power Company Limited for construction of railway siding in Raigad District in the State of Chhattisgarh - regarding.

Sir,

I am directed to refer to the Government of Chhattisgarh's letter no. F-5-43/2015/10-2 dated 3.12.2015 on above mentioned subject seeking prior approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980 and Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh vide his letter no. Bhu-Prabandh/Vividh/115-409/260 dated 6.02.2016 and 22.03.2016 forwarding additional information on the proposal as sought by the Regional Office vide its letter of even number dated 31.12.2015 and say that the proposal has been examined by the Regional Office in accordance with the relevant provisions of the Forest (Conservation) Act, 1980.

After careful examination of the proposal and on the basis of the recommendation of the State Government, the Central Government hereby conveys the 'in-principle' approval for diversion of 4.451 ha of revenue forest land in favour of M/s Korba West Power Company Limited for construction of railway siding in Raigad District in the State of Chhattisgarh subject to fulfilment of the following conditions:

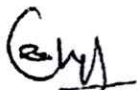
- (i) Legal status of the diverted forest land shall remain unchanged;
- (ii) Compensatory afforestation over non-forest land, equal in extent to the forest land being diverted, shall be raised and maintained by the State Forest Department at the cost of the User Agency;
- (iii) Examination of the area proposed for diversion using Decision Support System revealed that out of the two patches of non-forest land identified for raising compensatory afforestation, one patch, involving area of 3.361 ha, has fairly good stocking of trees (appears to be more than 40% and hence afforestation may not be possible). Therefore, in lieu of afforestation in this patch, the State Government shall undertake afforestation over equivalent degraded forest land at the cost of user agency besides taking up said patch of non-forest to compensate the loss of forest. Protection and gap planting in 3.361 ha of area will also be taken by the State Forest Department at the cost of user agency. A scheme to this effect will be submitted along with the Stage-I compliance;

- (iv) The non-forest land identified for raising compensatory afforestation shall be transferred and mutated in favour of the State Forest Department before issue of the Stage-II clearance;
- (v) The non-forest land transferred and mutated in favour of the State Forest Department shall be notified by the State Government as RF under Section-4 or PF under Section-29 of the Indian Forest Act, 1927 or under the relevant Section(s) of the local Forest Act, 1927 latest within a period of six months from the date of issue of Stage-II approval. The Nodal Officer shall report compliance in this regard along with a copy of the original notification declaring the non-forest land under Section 4 or Section 29 of the Indian Forest Act, 1927, as the case may be, within the stipulated period to the Central Government for information and record;
- (vi) The User Agency shall transfer the cost of raising and maintaining the compensatory afforestation, as mentioned at para (ii) and (iii) above, at the current wage rate, to the State Forest Department. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years;
- (vii) The State Government shall charge the Net Present Value (NPV) of the forest land being diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 28.03.2008, 24.04.2008 and 09.05.2008 in Writ Petition (Civil) No. 202/1995 and the guidelines issued by this Ministry vide its letter No. 5-3/2007-FC dated 05.02.2009 in this regard;
- (viii) At the time of payment of the Net Present Value (NPV) at the then prevailing rate, the User Agency shall furnish an undertaking to pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India;
- (ix) All the funds received from the user agency under the project, except the funds realized for regeneration/ demarcation of safety zone, shall be transferred to Ad-hoc CAMPA in the Saving Bank Account pertaining to the State concerned;
- (x) The User Agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
- (xi) No labour camp shall be established on the forest land;
- (xii) The User Agency shall provide fuels preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- (xiii) The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- (xiv) The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
- (xv) The forest land shall not be used for any purpose other than that specified in the proposal;
- (xvi) The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;

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- (xvii) No damage to the flora and fauna of the adjoining area shall be caused;
- (xviii) Any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department.
- (xix) The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nestling trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;
- (xx) The User agency will undertake comprehensive soil conservation measures at the project cost in consultation with the State Forest Department. A scheme of such measures may be submitted along with the compliance report.
- (xxi) The State Government shall ensure controlled speed limit if the trains passing through the forest portion to enable the trains drivers to react to the sudden appearance of the wild animals on the track. As and when required, speed of train shall be regulated in consultation with Chief Wildlife Warden of the State Government.
- (xxii) If required, provision for construction of sufficient underpasses for safe crossing of animal shall be made in consultation with Chief Wildlife Warden and the scheme will be submitted along with the compliance of Stage-I approval;
- (xxiii) The designing of culverts/bridges, if any, over the natural streams/rivers/canals should be done in such a manner that it does not hamper the natural course of water, does not give rise to water-logging, and also does not hamper movement of wild animals.
- (xxiv) The reclamation of quarry, if any, should be done under the supervision of the State Forest Department. The quarry shall be reclaimed and afforested completely before the project is closed.
- (xxv) The user agency will provide retaining walls, breast walls and drainage as per requirement to make the slope stable.
- (xxvi) The user agency shall submit the annual self compliance report in respect of the above conditions to the State Government and to the concerned Regional Office of the Ministry regularly.
- (xxvii) Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife; and
- (xxviii) The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project.

After receipt of a report from the State Government on the compliance of conditions no. (iii), (iv), (vi), (vii) (xx), (xxii) and undertakings in respect of rest of the conditions as indicated above, duly authenticated by the competent authority of the State Government, formal approval will be considered in this regard under Section-2 of the Forest (Conservation) Act, 1980. The transfer of



forest land to the User Agency shall not be effected by the State Government till formal orders approving the diversion of forest land are issued by the Central Government.

Yours faithfully

(Charan Jeet Singh)
Scientist 'C'

Copy to:

1. The Principal Chief Conservator of Forest, Government of Chhattisgarh, Raipur.
2. The Nodal Officer (FCA), O/o the PCCF, Government of Chhattisgarh, Raipur.
3. The Director (ROHQ), MoEF&CC, Indira Paryavaran Bhawan, Jorbagh Road, Aliganj, New Delhi.
4. The User Agency.
5. Guard File/NIC.

(Charan Jeet Singh)
Scientist 'C'



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moefregionalofficenagpur@gmail.com

F. No. FC-I/CH-19/2015-NGP / 1195

Dated: 3rd January, 2017

To

The Principal Secretary (Forests),
Government of Chhattisgarh,
Raipur.

Sub: Diversion of 4.451 ha of revenue forest land in favour of M/s Korba West Power Company Limited for construction of railway siding in Raigad District in the State of Chhattisgarh - regarding.

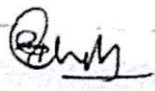
Sir,

I am directed to refer to the Government of Chhattisgarh's letter no. F-5-43/2015/10-2 dated 3.12.2015 on above mentioned subject seeking prior approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980 and Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh vide his letter no. Bhu-Prabandh/Vividh/115-409/260 dated 6.02.2016 and 22.03.2016 forwarding additional information on the proposal as sought by the Regional Office vide its letter of even number dated 31.12.2015. After careful examination of the proposal of the State Government 'in-principle' approval was accorded vide Regional Office of the MoEF&CC's letter of even number dated 25.04.2016 subject to fulfilment to certain conditions prescribed therein. The Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh submitted the compliance report of conditions stipulated in the Stage-I approval and requested to consider the proposal for grant of final approval under the Forest (Conservation) Act, 1980.

In this connection, I am further directed to inform that based on the compliance report submitted by the Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh vide his letter no. Bhu-Prabandh/Vividh/115-409/2713 dated 5.11.2016 'final approval' of the Central Government under Section-2 of the Forest (Conservation) Act, 1980 is hereby accorded for diversion of 4.451 ha of revenue forest land in favour of M/s Korba West Power Company Limited for construction of railway siding in Raigad District in the State of Chhattisgarh subject to following conditions:

- (i) Legal status of the diverted forest land shall remain unchanged;
- (ii) Compensatory afforestation over 5.261 ha of non-forest land, in lieu of forest land being diverted, shall be raised and maintained by the State Forest Department from the funds already provided by the User Agency;
- (iii) The non-forest land transferred and mutated in favour of the State Forest Department shall be notified by the State Government as RF under Section-4 or PF under Section-29 of the Indian Forest Act, 1927 or under the relevant Section(s) of the local Forest Act, 1927 latest within a period of six months from the date of issue of Stage-II approval. The Nodal Officer shall report compliance in this regard along with a copy of the original notification declaring the non-forest land under Section 4 or Section 29 of the Indian Forest Act, 1927, as the case may be, within the stipulated period to the Central Government for information and record;

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- (iv) The compensatory afforestation scheme proposed to be implemented shall include appropriate provisions for the protection of the compensatory afforestation plantation and anticipated cost increase for works scheduled for subsequent years;
- (v) The State Government has realized Net Present Value (NPV) of the forest land being diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 28.03.2008, 24.04.2008 and 09.05.2008 in Writ Petition (Civil) No. 202/1995 and the guidelines issued by this Ministry vide its letter No. 5-3/2007-FC dated 05.02.2009 in this regard. The NPV, if any becomes due in future, shall be realized by the State Government, if so determined, as per the final decision of the Hon'ble Supreme Court of India;
- (vi) The User Agency shall pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India;
- (vii) All compensatory levies, if any realized from the User Agency in future, under the project shall be transferred through e-challan to Ad-hoc Compensatory Afforestation Fund Management & Planning Agency (CAMPA) account pertaining to the State concerned;
- (viii) The User Agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
- (ix) No labour camp shall be established on the forest land;
- (x) The User Agency shall provide fuels preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- (xi) The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- (xii) The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
- (xiii) The forest land shall not be used for any purpose other than that specified in the proposal;
- (xiv) The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
- (xv) No damage to the flora and fauna of the adjoining area shall be caused;
- (xvi) Any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department.
- ✓ (xvii) The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;
- (xviii) The User agency will undertake comprehensive soil conservation measures at the project cost in consultation with the State Forest Department in accordance with the scheme prepared and approved by the State Forest Department.
- ✓ (xix) The State Government shall ensure controlled speed limit if the trains passing through the forest portion to enable the trains drivers to react to the sudden appearance of the wild animals on the track. As and when required, speed of train shall be regulated in consultation with Chief Wildlife Warden of the State Government.
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- (xx) If required, provision for construction of sufficient underpasses for safe crossing of animal shall be made in consultation with Chief Wildlife Warden and the scheme will be submitted along with the compliance of Stage-I approval;
- (xxi) The designing of culverts/bridges, if any, over the natural streams/rivers/canals should be done in such a manner that it does not hamper the natural course of water, does not give rise to water-logging, and also does not hamper movement of wild animals.
- (xxii) The reclamation of quarry, if any, should be done under the supervision of the State Forest Department. The quarry shall be reclaimed and afforested completely before the project is closed.
- (xxiii) The user agency will provide retaining walls, breast walls and drainage as per requirement to make the slope stable;
- (xxiv) The State Government shall ensure that settlement of rights, in terms of the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, if any, has been completed in accordance with the Guidelines issued by the MoEF&CC in this regard;
- (xxv) The user agency shall submit the annual self compliance report in respect of the above conditions to the State Government and to the concerned Regional Office of the Ministry regularly.
- (xxvi) Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife; and
- (xxvii) The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project.

Yours faithfully

— 89 —

(Charan Jeet Singh)
Scientist 'C'

Copy to:

1. The Principal Chief Conservator of Forest, Government of Chhattisgarh, Raipur.
2. The Nodal Officer (FCA), O/o the PCCF, Government of Chhattisgarh, Raipur.
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